

Court No. - 3

Case :- WRIT - C No. - 16452 of 2021

Petitioner :- Tulamani Patel

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mani Shanker Pandey

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Heard learned counsel for the petitioner; learned Standing Counsel for the State and Shri Rakesh Kumar Tripathi, Advocate holding brief of Shri Narendra Kumar Tiwari, learned counsel for the respondent nos. 2 and 3.

The present petition has been filed seeking following relief:-

"Issue a writ, order or direction in the nature of mandamus directing the respondent no. 2 to decide the representation/objection dated 26.03.2021 and 07.07.2021 within stipulated period, which may be fix by this Hon'ble Court (Annexure No. 11 and 13 to the writ petition)."

Earlier, the petitioner had filed a petition vide Writ C No. 386 of 2020, in which the following order was passed:-

"This writ petition has been filed, inter alia, for the following reliefs:

"(I) Issue a writ,order or direction in nature of certiorari to call for record of the case and quash the impugned recovery citation notice dated 9.12.2019 issued by respondent no. 2 (Annexure no. 13 to the writ petition) ."

Heard learned counsel for the petitioner, Mr. Mahboob Ahmad, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to

him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within four weeks from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of six weeks or till the matter is decided by the authority concerned, whichever is earlier, no coercive action shall be taken against the petitioner.

It is made clear that in case the petitioner does not approaches the authority concerned within the stipulated period, as indicated herein above, the benefit given to the petitioner under this order shall cease to operate.

With the aforesaid observation, the writ petition is finally disposed of."

In view of above, the present writ petition is clearly a second writ petition for the same cause of action and is accordingly, **dismissed**.

Order Date :- 2.8.2021
Saurabh